

Shesh Mani v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 May 2016 · Writ-C No. 23194 of 2016 · **Writ disposed; liberty to file a fresh clause 6.5 application, to be decided within four weeks.**

HEADNOTE

Where a consumer's earlier application under clause 6.5 of the U.P. Electricity Supply Code, 2005 was not on the licensee's record, the High Court disposed of the writ by granting liberty to file a fresh clause 6.5 application with a certified copy of the order and directing the authority to consider and decide it within four weeks of filing.

FACTUAL SUMMARY

Shesh Mani had earlier obtained a Division Bench order dated 30 November 2015 in Writ-C No. 64846 of 2015. Claiming to act on that order, he applied on 28 December 2015 under clause 6.5 of the U.P. Electricity Supply Code, 2005. No decision was taken. He alleged the authorities were sitting over the matter because the earlier order fixed no time-limit. Counsel for the distribution licensee stated on instructions that the alleged application was not available in the office of respondent no. 3.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

time-bound consideration of clause 6.5 application

HOLDING

Where the licensee stated that the consumer's earlier clause 6.5 application was not available on its record, the writ was disposed of by granting liberty to file a fresh application under clause 6.5 within two weeks, with a direction that the competent authority shall consider and decide any such application within four weeks of its making. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Where a consumer's earlier application under clause 6.5 of the U.P. Electricity Supply Code, 2005 was not on the licensee's record ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 OBJECTION AND THE UNDERLYING BILLING DISPUTE

The Court did not examine the substance of the 6.5 claim; it only granted liberty to apply afresh and directed a time-bound decision. ¶ 1

NOT DECIDED — WHETHER THE APPLICATION DATED 28.12.2015 WAS IN FACT RECEIVED

The licensee said the application was not on record; the Court did not resolve that conflict. ¶ 1